

**IN THE UNITED STATES DISTRICT COURT FOR
THE MIDDLE DISTRICT OF PENNSYLVANIA**

B.L., a minor, by her father, LAWRENCE LEVY, and her mother, BETTY LOU LEVY, Plaintiffs, v. MAHANoy AREA SCHOOL DISTRICT, Defendant.	Civil Action No. 3:17-cv-1734 (The Hon. A. Richard Caputo)
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**DEFENDANT'S OBJECTIONS AND RESPONSES
TO PLAINTIFF'S FIRST SET OF
INTERROGATORIES**

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3. Identify all MASD employees, representatives, or agents involved in deciding to punish B.L. for posting the Snap or involved in upholding the decision to punish B.L., identify the extent of such person's involvement in deciding to punish B.L. or in implementing such punishment, identify when such involvement of decisions occurred, and identify all of the reasons and bases (including, *e.g.*, school conduct codes) for each such person's decision and related actions.

Response: After viewing the Snap, cheerleading co-advisors April Gnall and Nicole Luchetta-Rump

discussed the situation on May 30, 2017 and agreed that B.L. should be removed from the junior varsity cheerleading team for violating team rules. However, they decided to discuss the matter first with then-Principal Thomas Smith. On May 31, 2017, Luchetta-Rump showed pictures of B.L.'s posts to Smith and explained that B.L. had apparently posted the Snap as a result of failing to make the varsity cheerleading team. She also said that she and Gnall were planning to remove B.L. from the team. Smith told Luchetta-Rump that he supported their decision, but he would need to investigate if B.L. had actually posted the Snap.

On June 1, 2017, B.L. was called down to the office. Luchetta-Rump showed B.L. a photo of the Snap, told her that posting the Snap was unacceptable, and that she would be dismissed from the team. On June 29, 2017, B.L. and her parents asked the Mahanoy Area School District's Board of School Directors (the "School Board") to overturn B.L.'s removal. The School Board took no action on the matter.

The Mahanoy Area High School Cheerleading Rules state, "There will be no toleration of any negative information regarding cheerleading, cheerleaders, or coaches placed on the internet."

School Board Policy 218 states that the Code of Student Conduct applies to off-campus activities, *inter alia*, "if the student is a member of an extracurricular activity and has been notified that particular off-

campus conduct could result in exclusion from such activities.”

The Handbook entry on “Co-Curricular Activities” states: “**PERSONAL CONDUCT:** Participation on an athletic team or cheerleading squad in the Mahanoy Area School District is a privilege and the participants must earn the right to represent Mahanoy Schools by conducting themselves in such a way that the image of the Mahanoy School District would not be tarnished in any manner. Any participant whose conduct is judged to reflect a discredit upon himself/herself, the team, or the Mahanoy Schools, whether or not such activity takes place during or outside school hours during the sports season, will be subject to disciplinary action as determined by the coach, the athletic director and/ or the school principal.”

The entry goes on to state, “**REMOVAL FROM A TEAM:** Removal from a team will be made by the coach of the sport, athletic director, or school administrator. The athletic director and/or principal will confer with the coach before any removal action is taken. Causes for removal from a team may include, but not be limited to the following:

- Use of alcohol, illegal use or possession of drugs not prescribed for the individual by a physician.
- Violations of the Mahanoy Schools Code of Student Conduct and Discipline which are significant.
- Repeated violations of school athletic or team policies.

- **Personal misconduct that involves police or court action wither during or outside school hours and sessions of the sport season.**
- **Verbal or physical attack upon an opponent, contest official, teacher, fan, coach, or any other person.**
- **Continued acts of unsportsmanlike conducts.”**

4. Identify all communications between any MASD employee, representative, or agent and any other person relating to any decision to punish B.L. for the Snap, including who participated in the communication, when the communication occurred, the form of the communication, and what was discussed.

Response: The District objects to this Interrogatory on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence. The District also objects to the extent that the communications in question involved any of the plaintiffs since that information would already be in the plaintiffs’ possession. The District further objects to the extent that this interrogatory seeks information protected by the attorney-client privilege. Subject to and without waiving these objections, the District states that the following nonprivileged communications occurred:

On May 30, 2017, Gnall called Luchetta-Rump and informed her about the posts by B.L. They tentatively agreed that B.L. should be removed from the cheerleading team, but agreed that they should first

discuss the situation with Principal Smith and provided him a copy of the Snap.

On May 31, 2017, after receiving photographs of the Snaps from Gnall, Luchetta-Rump met with Smith. She showed him pictures of B.L.'s posts, and explained that B.L. had apparently posted the Snap as a result of failing to make the varsity cheerleading team. She also said that she and Gnall were planning to remove B.L. from the team. Smith told Luchetta-Rump that he supported their decision but needed to investigate if Levy actually posted the Snap.

On June 1, 2017, B.L. was called to meet with Luchetta-Rump, who showed her the photograph and explained that she was being removed from the cheerleading team. B.L. apologized and asked to speak to her mother. B.L. called her mother, who then asked to speak to Luchetta-Rump. Mrs. Levy asked if Luchetta-Rump knew why B.L. posted the Snap. Luchetta-Rump responded that she believed it was because B.L. was upset over not making the varsity team. Mrs. Levy agreed and asked if the coaches might change their mind and allow B.L. to remain on the team. Luchetta-Rump explained that B.L. had not represented the school in an appropriate manner. B.L. then asked to speak with Principal Smith.

When B.L. went in to meet with Smith, Luchetta-Rump returned to her classroom. Later that day, she informed Gnall that she had told B.L. she was being removed from the team. Meanwhile, when Smith met with B.L., he asked if she had posted something on

social media against the cheerleading squad in a negative manner and she stated, “Yes.” Smith showed her the Snap and asked if she posted it, and she answered, “Yes.” Smith asked her why she had posted the Snap, and B.L. said she was angry she did not make the varsity squad. B.L. asked Smith if there was anything she could do to get back on the junior varsity cheerleading team. Smith said that he was not going to overturn the coaches’ decision, and that B.L. would have to speak to the coaches about the matter.

Also on June 1, Smith received a telephone call from Betty Lou Levy asking him to call Larry Levy to set up a conference to discuss the issue. Smith told Mrs. Levy that her husband should first talk to the cheerleading coaches. Smith then called Luchetta-Rump, explained the situation, and gave her Mr. Levy’s telephone number.

Smith e-mailed Superintendent Joie Green and Athletic Director Kieran Cray at 8:53 a.m. on June 1. In the e-mail, he described the meeting with B.L. and the phone call from Mrs. Levy.

On June 9, 2017, Mr. Levy delivered a letter to Green, Smith, and Cray requesting that they “review this case and overrule the decision of Mrs. Luchetta.”

On June 14, 2017, Luchetta-Rump, Gnall, Green, and Cray met with Mr. Levy and B.L. in the high school conference room. Mr. Levy claimed that B.L.’s First Amendment rights had been violated, and he referenced several court cases on the issue. Gnall,

Green and Cray explained that it is a privilege to be a cheerleader and that because B.L. had tarnished the reputation of the school and the cheerleaders, that privilege was being taken away. Mr. Levy requested a meeting with the board. Also on June 14, Mr. Levy submitted a “Right to Know” request to the District regarding the Snap incident. On June 26, the District hand-delivered documents responsive to the Right to Know request to the Levy’s home. Mrs. Levy signed a letter acknowledging receipt of the documents.

On or about June 27, 2017, Mr. Levy went to the business office of School Board member Daniel Lynch and asked Lynch if he was aware of the situation with B.L. Mr. Levy provided Lynch with a copy of his June 9 letter to the District and asked Lynch how the School Board might react to his appearance at the upcoming School Board meeting. Lynch informed Levy that the School Board would take the matter under consideration.

On June 29, 2017, Mr. Levy addressed the School Board at a regularly scheduled monthly meeting to ask that B.L. be returned to the cheerleading team.

On September 19, 2017, Levy visited Lynch at his office on an unrelated matter, but then began to discuss the situation with B.L. Lynch told Levy that because he was threatening to bring a lawsuit against the District that it would be inappropriate to discuss the matter. Although Levy pressed Lynch to discuss the matter further, Lynch declined.

On August 11, 2017, Green sent a text to Mr. Levy stating, in pertinent part, “Larry...fyi...the board decided to support the cheer coaches and their decision to remove your daughter from the team. However, she is able to try out again next year.”

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